

ASCII MASTER FLOW – PANEL 1/12: Core concept and constitutional origin

NOTE: Part XVI uses different legal techniques to pursue substantive equality

REPRESENTATION -> Articles 330-334A.

SERVICE CLAIMS -> Article 335.

COMMISSIONS / OVERSIGHT -> Articles 338-340.

CLASS IDENTIFICATION -> Articles 341-342A.

FIREWALL: a list identifies; a reservation provision authorises; a commission monitors.

ASCII MASTER FLOW – PANEL 2/12: Articles 330 and 332 plus delimitation

~~ARTICLE 330 -> SC/ST seats in Lok Sabha, broadly population proportionate~~

ARTICLE 332 -> SC/ST seats in State Assemblies, with specified North-East safeguards.

ORDINARY TERRITORIAL ELECTORATE -> every elector votes; no separate electorate.

POPULATION EXPLANATION -> 2001 figures continue until relevant first post-2026 census figures publish.

ARTICLES 82/170 -> total-seat readjustment remains frozen pending that publication.

87TH AMENDMENT -> constituency readjustment could use 2001 figures without changing frozen totals.

ASCII MASTER FLOW – PANEL 3/12: Articles 330A, 332A and 334A

106TH AMENDMENT (2023) -> Inserted Articles 330A, 332A, 334A and amended Article 330AA.

S.O. 1922(E), 16 APRIL 2026 -> Amendment commenced.

OPERATION CHAIN:

first census taken after commencement -> relevant figures published

-> delimitation for this purpose -> reservation takes electoral effect.

SCOPE -> Lok Sabha, State Assemblies, Delhi Assembly; not Rajya Sabha or Councils.

DESIGN -> about one-third overall, including about one-third within SC/ST reserved seats.

ASCII MASTER FLOW – PANEL 4/12: Duration, rotation and existing Houses

ARTICLE 334A(1) -> fifteen years from commencement of the reservation provisions.

ARTICLE 334A(2) -> Parliament may by law determine continuation.

ARTICLE 334A(3) -> rotation after each subsequent delimitation as Parliament determines by law.

ARTICLE 334A(4) -> existing House/Assembly representation continues until dissolution.

CURRENT STATUS, 9 SEPTEMBER 2026:

Amendment commenced; relevant census figures and purpose-specific delimitation are not complete.

Therefore the reservation is not yet electorally operational.

ASCII MASTER FLOW – PANEL 5/12: Anglo-Indian representation and transition

ARTICLE 331 -> President could nominate up to two Anglo-Indians to Lok Sabha

ARTICLE 333 -> Governor could nominate one Anglo-Indian to a State Assembly.

ARTICLE 334 -> SC/ST seat clock is eighty years; nomination clock remained seventy years.

104TH AMENDMENT (2019, effective 2020) -> SC/ST reservation to 25 January 2030;

Anglo-Indian nomination ceased after 25 January 2020.

ARTICLE 336 -> specified Union-service transition ended after ten years.

ARTICLE 337 -> diminishing educational-grant transition ended after ten years.

TRAP: ceased operation is not the same as textual deletion of Articles 331/333.

ASCII MASTER FLOW – PANEL 6/12: Article 335 service-claim bridge

~~ARTICLE 335 -> SC/ST claims considered in Union/State appointments consistently with efficiency~~

82ND AMENDMENT (2000) -> permits qualifying-mark/evaluation relaxation for promotion reservation.

ARTICLE 335 -> no fixed quota; no definition of "efficiency"; no OBC/EWS source.

M. NAGARAJ (2006) and JARNAIL SINGH (2018) -> promotion doctrine belongs with Articles 16(4A)/(4B).

DAVINDER SINGH (2024) -> efficiency should promote inclusion; Article 335 is a restatement, not a free-standing veto over substantive equality.

ASCII MASTER FLOW – PANEL 7/12: Articles 338, 338A and 338B institutions

ARTICLE 338 -> NCSC: monitor safeguards, inquire complaints, advise/evaluate, report.

ARTICLE 338A -> NCST: parallel ST safeguard body with tribal-development focus.

ARTICLE 338B -> NCBC: SEBC safeguard body constitutionalised by 102nd Amendment.

COMMON MECHANISM -> President-appointed Chair, Vice-Chair and three members;
investigative civil-court powers; reports plus action-taken/non-acceptance memoranda.

LIMIT -> reports are influential but not binding decrees; commissions cannot alter lists.

ARTICLE 338(10) -> NCSC reference includes the Anglo-Indian community.

ASCII MASTER FLOW – PANEL 8/12: Articles 339 and 340

ARTICLE 339(1) -> President may appoint a Scheduled Areas/ST-welfare commission;
appointment was compulsory after ten years from Constitution commencement.

ARTICLE 339(2) -> Union may direct States on schemes essential for ST welfare.

ARTICLE 340 -> President may appoint a temporary commission to investigate SEBC conditions, difficulties, remedies and grants; report plus action memorandum goes to Parliament.

DISTINCTION -> Article 339 supervision is not Fifth/Sixth Schedule administration;
Article 340 commission is not the permanent NCBC under Article 338B.

ASCII MASTER FLOW – PANEL 9/12: Articles 341 and 342 list mechanics

ARTICLE 341 -> President initially specifies State/UT specific Scheduled Castes;

Parliament alone may include or exclude by law.

ARTICLE 342 -> same architecture for Scheduled Tribes.

STATE ROLE -> consultation at initial State notification; no independent list alteration.

TERRITORIALITY -> status in one State/UT is not automatically status everywhere.

COMMISSION ADVICE -> evidence for government/Parliament, not a list-amending act.

ASCII MASTER FLOW – PANEL 10/12: Article 342A and SEBC federalism

102ND AMENDMENT (2018) -> Article 338B, original Article 342A, Article 366(26C)

JAISHRI LAXMANRAO PATIL (2021) -> majority read pre-105th text as displacing State identification.

105TH AMENDMENT (2021) -> Central List retained for Central purposes;

States/UTs may by law maintain own-purpose lists, which may differ.

ARTICLE 342A(1)-(2) -> President specifies and Parliament varies the Central List.

ARTICLE 342A(3) -> State/UT own-purpose list by law.

LIMIT -> State SEBC power does not alter Articles 341/342 SC/ST lists.

ASCII MASTER FLOW – PANEL 11/12: EWS and SC sub-classification firewalls

103RD AMENDMENT (2019) -> Articles 15(6), 16(6) enable EWS measures; not Article 342A.

JANHIT ABHIYAN (2022) -> 3:2 majority upheld that amendment.

E.V. CHINNAIAH (2004) -> treated notified SCs as indivisible for sub-classification.

STATE OF PUNJAB v DAVINDER SINGH (2024) -> 6:1 Court overruled that bar.

STATE MAY -> use rational, evidence-based sub-classification under Articles 15(4)/16(4).

STATE MAY NOT -> change Article 341 list or give all SC-reserved seats exclusively to a subgroup.

NO AUTOMATIC RULE -> sub-classification is enabling, reviewable and not nationally compulsory.

ASCII MASTER FLOW – PANEL 12/12: Examiner decision tree and answer spine

STEP 1 FIELD -> Parliament/Assembly, local body, education, service, welfare or list.

STEP 2 CLASS -> SC, ST, SEBC, EWS or Anglo-Indian transition.

STEP 3 SOURCE -> exact Article, amendment, statute, notification or judgment.

STEP 4 AUTHORITY -> President, Parliament, State law, commission or delimitation process.

STEP 5 EFFECT -> identify, represent, distribute, monitor, fund or adjudicate.

STEP 6 STATUS -> enacted, commenced, operational, expired or pending implementation.

ANSWER VERDICT:

Part XVI is a differentiated constitutional architecture; precision about source, authority and legal effect is the safeguard against both under-inclusion and overclaim.